File No.: EXP202304146
RESOLUTION OF SANCTIONING PROCEDURE
From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND
FIRST:
A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 8, 2023. The complaint is directed against WENANCE LENDING DE ESPAÑA, S.A. with NIF A67194746 (hereinafter, the respondent, WELP, or WENANCE). The reasons on which the complaint is based are as follows:
The complainant states that WENANCE attributes a debt to them that does not correspond, as it arises from the contracting of a loan allegedly made fraudulently. The loan agreement is said to have occurred on August 21, 2020.
Along with the notification, a burofax sent by the complainant to WENANCE, dated August 12, 2022, is attached, in which they communicate that they do not recognize the debt, nor have they contracted any credit with the respondent; they also request that WENANCE cease processing their data henceforth. It is inferred that the burofax was sent by the complainant after receiving some notification or payment demand regarding the contracted credit.
To this burofax, the complainant attaches two complaints filed with the National Police regarding these events (submitted in October and December 2020). The first of these contains facts that could explain a possible identity theft of the complainant:
“On August 21 [2020], I saw a job offer on the milanuncios page. In the ad, they provided the phone number ***PHONE.1 for contact.
The declarant contacted this number, indicating that they needed to send a selfie with the front and back of their ID. The declarant did so and did not receive a response again.
On the date [06/10/2020], their mother received a call in which a financial insurer told her that they owed 200 euros plus interest on a loan that had been requested.
The declarant called this company at ***PHONE.2, who informed them of their loan, stating that they owed 319 euros and had to repay it. And that it is associated with Banco Santander, but it is not in their name.
The declarant contacted via email collections “welp.es” from where they provided the screenshot of the contract, which is attached to the present.”
Additionally, the complainant provides a document titled “Exercise of the right to erasure” addressed to the respondent dated 02/02/2023.
SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to WENANCE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.
The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on March 31, 2023, as stated in the acknowledgment of receipt in the file.
On May 4, 2023, this Agency received a response indicating the following:
- The complainant did indeed contract a loan with WENANCE on August 21, 2020. A copy of it is provided.
- At the time, they requested the erasure of their personal data, but this could not be accepted as the execution of the contract was still in effect.
- They assert that they consider the complainant's version “implausible” for several reasons:
o It is impossible, in their opinion, that on the same day they provided their data to a third party, this person opened a checking account at Banco Santander (for the deposit of the loan amount).
o WENANCE only accepts the deposit of the requested loan amount in bank accounts that are more than three months old.
o WENANCE performs a prior deposit through its payment service provider to verify the ownership of

the bank account.
o Additionally, they note that the complainant provides a complaint from October 2020, but it is surprising that two and a half years later, there is no lawsuit or any type of judicial investigation.

Provides a copy of the contract that would be electronically signed, through the submission of the same to an email address and subsequent confirmation via a code sent by SMS to the mobile phone. The email address provided is: ***EMAIL.1 and the contact phone line for sending the SMS: ***TELÉFONO.1

THIRD: On May 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.
FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware, essentially, of the following points:
Date on which the claimed events took place:
- Opening of the allegedly fraudulent loan: 21/08/2020
- Dates of police reports: 06/10/20 and 16/12/2020
- Date of submission of the burofax for the right of erasure before WENANCE: 12/08/2022.

RESULT OF THE INVESTIGATIVE ACTIONS
Analyzing the evidence of electronic signature of the contract provided by the respondent, it is observed that:
- It is a certificate issued by the trusted third party LLEIDANETWORKS Serveis Telemàtics S.A. (hereinafter ***URL.1), which is a qualified trust service provider as established in the eIDAS Regulation for the entire European Union and provides the qualified service of certified electronic delivery, as published on the website of the Ministry of Economic Affairs and Digital Transformation.
- The CIF of WELP presented in the certificate is incorrect. The certificate shows: Welp.es (A12345678), when the actual CIF of WELP is A67194746. The contract between WELP and ***URL.1 will be requested later, and it will be confirmed that there is indeed a contract between them for certified electronic delivery, although in that contract the CIF also contains a typographical error: A97194746 instead of A67194746.
- The signature evidence specified in the certificate is as follows:

- 2020-08-21 09:01:37 UTC-3: An EMAIL of type certified process initiation has been sent to the email ***EMAIL.1.
- 2020-08-21 09:03:00 UTC-3: An SMS of type certified OTP notification has been sent to the phone ***TELÉFONO.1.
- 2020-08-21 09:03:26 UTC-3: An HTTPS request has been received from the IP ***IP.1 corresponding to the signing event.
- Analyzing the evidence provided along with the previous data, it is perceived that:
- The email initiating the process originated in UTC-3 and at the footer of the contract signature it states Buenos Aires, Argentina. (Inspector's clarification: This origin is common in the certificates of electronic communications with WELP issued by ***URL.1.)

- The data where the email with the documentation and the SMS with the contract signature code are sent are: ***EMAIL.1 and ***TELÉFONO.1. This phone number matches the phone that appears in the report filed with the police by the claimant, the phone with which they allegedly contacted to send the photos and request the job.
- The data that appears in the SEPA direct debit mandate as Debtor are:
o Name and surname: A.A.A.
o Address: Calle ***DIRECCIÓN.1
o Bank entity: BANCO SANTANDER
o IBAN: ***IBAN.1
(Account number where the loan was received, whose holder is supposedly the claimant)

Request for information from the claimant
On June 16, 2023, additional information was requested from the claimant to gather clarifications regarding the date and the data provided for the job offer, about the means used to provide such data, and about the results obtained from any investigation related to the matter, originated by the filing of police reports. No response has been received from the claimant.

Request to BANCO SANTANDER
On June 16, 2023, a request for information was sent to BANCO SANTANDER in which, among other topics, the data of the claimant that they have in their systems is requested, information about all contracts formalized with the claimant, as well as the identification and contact details of the holder of the bank account ***CUENTA.1 and its date of opening and closing. (Remember that this bank account is the one to which WELP sent the amount of the granted credit).

BANCO SANTANDER submits its response document dated June 26, 2023, in which it states that:
1.- The holder of the bank account ***ACCOUNT.1 corresponds to the client B.B.B., DNI ***NIF.1, as the sole participant/holder with registration date 08/20/2020 and cancellation date 01/15/2021.
It provides a screenshot of the contracts of the client B.B.B. along with their registration and cancellation dates.
It is therefore observed that the account receiving the amount of the credit is not owned by the claiming party.
2.- It provides the following details of the client B.B.B.:
- Email: ***EMAIL.2
- Phone: ***PHONE.3
- Address: Street ***ADDRESS.2.
- Client since April 14, 2020.
3.- It provides the following details of the claiming party:
- Email: ***EMAIL.1
- Phone: ***PHONE.1
- Address: Street ***ADDRESS.1.
- Client since June 30, 2021.
4.- It provides the active contracts of the claiming party. Among them is a current account whose number does not match the data provided by WELP.

Information request to WELP.
On June 16, 2023, an information request was sent to WELP in which they were asked, among other topics, for the data of the claiming party that they have in their systems, information about all contracts formalized with the claiming party, as well as a detailed description of the procedure for contracting this bank loan and a copy of the communications maintained with the claiming party and the complaints received from them regarding the reported facts.

WELP sends its statement of allegations dated June 26, 2023, and expands it on July 3, 2023, along with which it submits the following documentation:
1.- First response document to the request.
2.- Agreement for the designation of DPO of WELP.
3.- "Documentary Set": Document that encompasses the following documentation:
1- Data of the claiming party:

2- List of all contracted products.
3- Procedure for contracting bank loans of WELP.
4- Procedure for contracting the loan that is the subject of the claim.
5- Validation Annex of the Agent, who manually validated the documentation.
6- Documentation collected in the formalization of the contract to verify the identity of the claiming party.
7- Documents where records and communications received by the claiming party are noted.
8- Contract signed between WELP and ***URL.1.
4.- Video with the audio of the communications maintained between the claiming party and WENANCE in October 2020.
5.- Second response document to the request.
6.- Certificate from BANCO SANTANDER dated June 28, 2023, issuance of the loan amount to the account of the beneficiary “A.A.A.”, ***ACCOUNT.1.
Point 1.- Requested the data of the claiming party that they have in their systems, WELP sends screenshots from the different systems where the data and/or information related to the claiming party are recorded. The following information is noteworthy:
Email: ***EMAIL.1 and ***PHONE.1.
Phones: (…). This last phone number matches the one recorded in SANTANDER's systems.
IBAN: ***ACCOUNT.1.
Cases (incidents) with dates 10/06/2020, 10/06/2020, 10/07/2020, 01/21/2021, and 06/21/2021.
Incident screenshot, with the text “I am A.A.A. with DNI ***NIF.1 and I am contacting you because I have to report that my identity has been impersonated, signing a contract with you and the police have requested that I ask for a proof where the debt in my name appears and the phone from which it was made to proceed with the complaint, I would like you to provide it to me. Thank you very much.”
Transfer receipt dated 08/21/2020 in favor of ***NIF.1 CONCEPT Welp - 235212
It also provides the signed contract (similar to the one provided in the response to the transfer) and screenshots with information about said contract.

Point 2.- Regarding the products contracted by the claiming party, WELP shows Préstamo Welp Bronce SI Full for an amount of €200 with a subscription date of 21/08/2020.
Point 3.- When requested about the procedure for contracting bank loans, the responding party indicates:
I. Loan Application
The loan was applied for online. The application could be made by any individual with internet access and access to the page that met the following requirements:
a. Be a legal resident in Spain.
b. Be of legal age.

c. Have a bank account in the name of the applicant requesting the loan.
d. Demonstrate recurring income.
e. Have a phone number.
f. Have an email address.
II. Classification of the application and request for documentation
Within the usual operations of Wenance, when the consumer loan application was for an amount less than one thousand euros (€1,000), in accordance with the Internal Manual for the Prevention of Money Laundering and Terrorism Financing of Wenance and, specifically, with its Customer Acceptance Policy dated January 18, 2019, it was appropriate to apply simplified due diligence measures, as established in Article 16 h) of Royal Decree 304/2014, of May 5, which approves the Regulation of Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism, which stipulated the following:
"Obliged subjects may apply, depending on the risk, simplified due diligence measures regarding the following products or operations:
h) Consumer credit contracts for amounts less than €2,500 provided that repayment is made exclusively by debit to a current account opened in the name of the debtor at a credit institution based in the European Union or in equivalent third countries."
Thus, in accordance with the above, Wenance carried out the following checks for such loans:
a) Complete an application form in which they provided the following personal information:
1. Name and surname.
2. Identification number (DNI/NIE).
3. Date of birth.
4. Address.
5. Income.
6. Phone.
7. Email.
8. Bank account number.

b) Subsequently, if the clients met the requirements, they had to send the following documentation, which would then be verified by an agent from the Sales department:
1. Photo of the DNI/NIE, both the front and back.
2. Selfie holding the identity document in hand.
3. Proof of income.
4. Proof of ownership of the bank account.
III. Validation
Once the documentation was received, the Sales department Agent validated that the data provided by the client matched the documentation provided.
Additionally, they verified that the client was the account holder, that the DNI/NIE was valid, and that the selfie matched the photo on the DNI/NIE, (...).
If the client met all the requirements, the loan application was approved.
IV. Contracting
Subsequently, the client received the contract via email for their signature, and a code was sent via SMS to proceed with the signing of the contract.
Once the contract was signed, the operations department issued a transfer order to the indicated account manually, and the requested amount was deposited.
Point 4.- Regarding the contracting of the loan by the claiming party, WELP states that it was requested online and simplified measures were applied since it did not exceed one thousand euros:
a) completed the application form and provided personal data.

b) Sending the following documentation:
1. Photo of the DNI/NIE, both the front and back.
2. Selfie holding the identity document in hand.
3. Proof of income and a copy of the last payslip.
4. Proof of ownership of the bank account.
"The loan was pre-approved and the documentation was verified by C.C.C., a former agent of the Sales department, who checked that the data provided by the client matched the attached documentation. Additionally, they verified that the DNI data matched those reflected in the bank account. They also verified that the DNI was valid and that the selfie matched the photo on the DNI/NIE."
Point 5.- Regarding the mechanisms and security measures used by WELP to ensure the authenticity of the data provided by the client, the responding party refers to a list of measures, taking into account what was explained in the previous points regarding the applicable procedure:
"a) Request for a photocopy of the DNI.
b) Request for a photograph holding the document, in order to make a comparison between the applicant and the holder.
c) Request for the last payslip and bank receipt of payment, to manually verify that the data contained therein corresponded with those of the DNI holder.

d) Phone call to the number listed to verify its functionality.
e) Manual validation of all documentation by the agent in charge at that moment. "
For this validation, WELP provides a copy of the Agent Validation Annex (DOC#2.5) in which Note 2 states: "doc ok 21/08/2020 15:53 by C.C.C." and "data ok 21/08/2020 16:33 by D.D.D."
f) Request for two-factor authentication between the provided email and the phone number, in order to mitigate the risk of forgery in the signing of the contract.
g) Manual transfer of the loan amount to the client's account."
Point 6.- Upon request for the documentation submitted for the formalization of the contract, WELP sends a photo of the front and a photo of the back of the ID of the claimant, a photo of the claimant holding the ID, a proof of income, and a copy of the last payslip.
Both the proof of income provided for the formalization of the contract and the copy of the last payslip are included in (DOC#2.6) and specify the account number ***CUENTA.1, an account that has been verified not to belong to the claimant. These documents could be images of the original documents sent by the claimant in which the account number was subsequently modified before being sent for the loan application.
The defendant has not provided the proof of ownership of the bank account that was supposedly verified by the former agent from the Sales department C.C.C.
Point 7.- When requested for information regarding the verifications carried out by Unnax to verify the correspondence of the current account data with the data provided in the loan application process, WELP explains that "After successive verifications by WENANCE, it has been confirmed that, on the date of the loan application by Ms. A.A.A., the verification service was not performed by UNNAX REGULATORY SERVICES, E.D.E, S.L. (UNNAX), but manually, as indicated in points 3 to 5."
Point 8.- Regarding the contacts maintained with the claimant, WELP provides documents that contain records and communications received from the claimant and a video with the audio of the communications held between the claimant and WELP in October 2020.
It is verified that the email exchange took place between the addresses ***EMAIL.1 and ***EMAIL.3. In this email exchange, it is noted that, in response to the claimant's request for a document showing the debt in their name and the phone number from which the report was made, WELP provides the loan amortization table. Subsequently, the claimant sends WELP a copy of the police report, report number 14741/20.

WELP does not indicate any response to the burofax submitted by the claimant dated August 12, 2022.
The provided video consists of four audio recordings of calls made by the claimant or by their mother. The most relevant information from the calls is as follows:
- Audio 1 (06/10/22):
Call from the claimant's mother to WELP.
She claims that WELP has called her phone (the mother's, E.E.E.), insists that they have never requested a loan, and requests that all her daughter's data be deleted.
- Audio 2 (06/10/22):
WELP informs that there is a proof of a transfer. WELP asks if the account ending in 3689 belongs to the claimant.
The claimant confirms that they do not have any account at Banco Santander: (…).
At minute 7:54, WELP states: "You need to report it because someone has your data. We are going to trace the phone of the person who did it because we have a verification call."
- Audio 3 (07/10/22):
WELP provides the email where the claimant needs to send the report.
- Audio 4 (08/10/22):
The claimant informs that they have filed a report with the police and have sent the report by email to ***EMAIL.3.
At minute 14:06, the claimant asks: "This, since it has already been reported, there won't be any problem, right?" to which WELP responds: "No, now the problem is with the person who took out the loan."
Point 9.- WELP expands its written allegations by providing a certificate from BANCO SANTANDER dated June 28, 2023, which states the issuance of the loan amount to the beneficiary account "A.A.A.", ***CUENTA.1. (DOC#4)
WELP indicates that "the previous certificate is relevant for demonstrating the verification of the authenticity of the account carried out by WENANCE. This is because, as the process was carried out two years ago, it is not possible to consult the manual verification performed by the agent assigned to the account, beyond the documents already provided that are recorded in the WENANCE computer system. Through this certificate, it is allowed to certify, as of today, that the account registered in the loan application is associated with the applicant and that the transfer for the loan amount was made to them."
It has been verified that this document is a certificate issued and signed by SANTANDER and reflects the data specified at the time of the transfer.

Article 59 (Incorrect Unique Identifiers) of Royal Decree-Law 19/2018, of November 23, on payment services and other urgent financial measures (hereinafter, RDLSP) establishes that:
"1. When a payment order is executed in accordance with the unique identifier, it shall be considered correctly executed in relation to the beneficiary specified in that identifier."

The excerpt from the 2020 complaints report of the Bank of Spain regarding the Unique Identifier indicates:
"The payment services regulations state that the unique identifier consists of a combination of letters, numbers, or symbols specified by the payment service provider to the user of such services, which the latter must provide in order to unequivocally identify the other user of the payment service or the payment account of that other user in a payment operation, and which would be given by the account number (IBAN) provided for the execution of the payment order.
Thus, in accordance with the provisions of Article 59 of the RDLSP, when a payment order is executed according to the unique identifier, such order shall be considered correctly executed in relation to the

beneficiary indicated in that identifier, and the payment service provider shall not be liable for the non-execution or defective execution of the operation when the unique identifier provided by the user was incorrect. However, in such cases, the payment service provider of the ordering party is required to make reasonable efforts to recover the funds, being able to charge for such recovery efforts the recovery costs that may have been agreed upon in the framework contract.
The payment services regulations also do not establish the obligation for entities to verify that the name of the beneficiary corresponds with that of the holder of the destination account number for the transfer or other additional data, beyond the coincidence of the beneficiary IBAN with that indicated in the payment order."

Therefore, the certificate provided by WELP does not allow for the verification of the ownership of the bank account.
The RDLSP regulations and the excerpt from the 2020 complaints report of the Bank of Spain regarding the Unique Identifier are recorded in the SIGRID system as associated objects.

Conclusions from the inspection report regarding the claims of the responding party.
As a summary, the claims made by the responding party that have been found to be contradicted are shown:
.- "In short, it is impossible that with just a photo of the claimant with the ID card a bank account was opened online on the same day that the photo was provided."
The bank account was previously created, and it has been confirmed that the ownership of the account does not belong to the claimant.
.- "Furthermore, my client, also as obligated under the Anti-Money Laundering regulations, as recorded in their anti-money laundering manual and as part of their risk policy, only admits the contracting of loans with individuals who have bank accounts that are at least 3 months old."
It has been verified that the account was created on August 20, 2020, one day before the loan contract that is the subject of the claim.
.- "The above is also evident, as it makes, through the duly accredited payment provider under the PSD2 directive, Unnax, a deposit into the applicant's current account (with prior permission) to check if the current account data corresponds with those provided in the application process (ID card, name and surname, address, etc.) and to analyze expenses, income, etc., in order to assess the applicant's solvency."
The responding party acknowledges that the validation to verify the correspondence of the current account data with the data provided in the loan application process was manual: "After successive checks by WENANCE, it has been verified that, on the date of the loan contract by Ms. A.A.A., the verification service was not performed by UNNAX REGULATORY SERVICES, E.D.E, S.L. (UNNAX), but manually, […]".
.- "Finally (and not less importantly), the claimant provides a complaint from October 2020. Two and a half years later, is there no complaint? No type of judicial investigation? We are talking about receiving €200 in the current account ***CUENTA.1, which is in the name of the claimant."
The current account is not in the name of the claimant.
Additionally, it has been verified that, in the recordings provided, WELP indicates to the claimant that they will carry out internal actions: "You have to report because someone has your data. We are going to trace the phone of the person who did it because we have a verification call."
WELP also reassures the claimant: "This, as it has already been reported, will not be a problem, right?" to which WELP responds: "No, now the problem is with the person who made the credit."
.- "[...] through this certificate, it is allowed to verify, as of today, that the account registered in the loan application is associated with the applicant and that it was to whom the transfer for the loan amount was made."
It has been verified that this document is a certificate issued and signed by SANTANDER and reflects the data specified at the time of making the transfer, but it does not allow for the verification of the ownership of the bank account.

CONCLUSIONS

Claim for debt arising from the alleged fraudulent contracting of a loan.
The existence of a transfer from WELP to the beneficiary account of the loan has been evidenced.
It has been confirmed that the beneficiary account of the loan does not belong to the claiming party but to another person (
B.B.B.
DNI
***NIF.2
) with registration date 20/08/2020 and cancellation date 15/01/2021. The account was created on August 20, 2020, one day before the contracting of the loan that is the subject of the claim.
It has been verified that the email address and phone number used to contract the loan, as recorded in WELP's databases, do not match the email address and phone number that SANTANDER has in its databases and that the claiming party has used to contact WELP.
It has been established that WELP was aware of the alleged fraudulent contracting since October 6, 2020.
WELP has not provided the proof of ownership of the bank account that it supposedly should have manually reviewed for the contracting of the loan.
When requested for a copy of the communications maintained with the claiming party regarding the reported facts, WELP does not indicate any response to the burofax submitted by the claiming party dated August 12, 2022, although in the response to the transfer it explained that the claiming party requested the right to erasure of the data, which could not be granted due to having an active and unpaid contract between the parties.
It has been verified that, in the recordings provided, the claiming party requests that all data related to this loan be deleted.
In the recordings, it is warned that WELP was going to trace the phone from which the contracting was made, advises the claiming party to file a complaint, and reassures them by informing that once reported, there will be no further problems.
The claiming party has not received notification of the requirement (by postal means) as of the date of signing this report, but it is evident that they provided a lot of information (photos of DNI, selfie with DNI, payslip, and proof of payslip transfer).
It has been demonstrated that the assertions made by the responding party in their allegations to the transfer are incorrect.
It has been verified that the certificate from SANTANDER presented by the responding party, to prove that the account registered in the loan application is associated with the applicant, reflects the data specified at the time of the transfer but does not allow for the ownership of the bank account to be verified.

FIFTH: According to the report obtained from the AXESOR tool, the entity WENANCE LENDING DE ESPAÑA, S.A. is a company established in 2018, and with a (…).
SIXTH: On July 20, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the responding party, for the alleged infringement of Article 12 of the GDPR and Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.
SEVENTH: It is duly recorded that the interested party received the aforementioned initiation agreement, which has been notified in accordance with the rules established in Law 39/2015, of

October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). After the period granted for the formulation of allegations, it has been confirmed that no allegations have been received from the responding party.
Article 64.2.f) of the LPACAP -provision of which the responding party was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the responding party, and the sanction that could be imposed.
Therefore, considering that the responding party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.
In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,
PROVEN FACTS
FIRST. The claiming party states that on August 21, 2020, they saw a job offer on the website "milanuncios." The advertisement provided the phone number ***TELÉFONO.1 for contact. After contacting that number, the claiming party claims to have sent a selfie of themselves with the front and back of their DNI.
SECOND. On 21/08/2020, WENANCE entered into a consumer credit contract, in which, as the borrower of the loan, the following data appears:
“1. Customer data
Name and surname: A.A.A.
Date of birth: XXXXXX
Address: ***DIRECCIÓN.1
Mobile phone: ***TELÉFONO.1
Email: ***EMAIL.1
NIF/NIE: ***NIF.1

THIRD. The formalization of the celebration of the contract referred to in the previous proven fact was carried out through the following procedure:
According to the data appearing in the certificate issued by "the telecommunications operator LLEIDANETWORKS Serveis Telemàtics S.A. as a trust service provider, the following steps were followed for the celebration of the contract by electronic means:

- (…).
FOURTH. The credit amount was deposited in the current account with code ***ACCOUNT.1.
According to the certificate from Banco Santander included in the file:
1.- The holder of the bank account ***ACCOUNT.1 corresponds to the client B.B.B., DNI ***NIF.2, (…).
2.- The following details of the client B.B.B. are provided:
- Email: ***EMAIL.2
- Phone: ***PHONE.2
- Address: ***ADDRESS.2.
- Client since XXXXXXXXX

This confirms that the credit amount was deposited in a bank account owned by a person different from the claiming party.
FIFTH. The procedure for granting the credit established by the claimed party, depending on the amount, was as follows:
a) Completion of the application form indicating personal data.

b) Submission of the following documentation:
a. Photo of the DNI/NIE, both the front and back sides.
b. Selfie holding the identity document in hand.
c. Proof of income and a copy of the latest payslip.
d. Proof of ownership of the bank account.
SIXTH: The claimed party has not provided the proof of ownership of the bank account that was supposedly verified by the former agent of the Sales department.
SEVENTH. Regarding the verification of the ownership of the bank account where the amount of the requested credit was to be deposited, the claimed party stated that it had contracted a payment provider, duly accredited under the PSD2 directive, Unnax, to make a deposit in the applicant's current account (with prior permission) to check if the bank account details correspond to those provided in the application process (DNI, name and surname, address, etc.) and to analyze expenses, income, etc., in order to assess the applicant's solvency. However, it later states that after successive verifications by WENANCE, it was confirmed that, on the date of the loan contract by Ms. A.A.A., the verification service was not performed by UNNAX REGULATORY SERVICES, E.D.E, S.L. (UNNAX), but manually. The claimed party does not provide any documentation regarding this verification.
EIGHTH. The claimed party claims to have a mechanism to prevent fraud, consisting of requiring that the bank account in which the deposit is made has been open for more than three months. This requirement was not met, as according to the documentation in the file, the dates are as follows:
- Date of opening of the receiving account at Banco Santander: 20/08/2020
- Date of celebration of the loan contract: 21/08/2020
- Date of deposit of the amount in the bank account: 21/08/2020
NINTH. There is a burofax addressed by the claiming party to WENANCE, dated August 12, 2022, by which it communicates that it does not recognize the debt, nor having contracted any credit with the claimed party; it also requests that it cease processing its data henceforth.
WENANCE acknowledges having received it, indicating that the deletion could not be accepted as the execution of the contract was still in force, in its opinion. As stated in the report of prior investigation actions, when a copy of the contacts maintained with the claiming party regarding the reported facts was requested, WELP does not indicate any response to the burofax submitted by the claiming party dated August 12, 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.
Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II.

Preliminary Issues

In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since WENANCE LENDING DE ESPAÑA, S.A. carries out this activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR: “Data controller” or “controller”: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law so provides.

III

Applicable Provisions

The GDPR addresses in its Article 5 the principles governing the processing of personal data, a provision that states:

“1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (<>)

[...]

Paragraph 2 of Article 5 of the GDPR establishes that “The controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it (<>)”.

Article 6 of the GDPR under the heading “Lawfulness of processing” specifies in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

“1. Processing shall be lawful only if it meets at least one of the following conditions:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person.

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

IV

Breach of Obligation

The party being claimed in this initiation agreement is attributed a violation of Article 6.1. of the GDPR. The documentation in the file provides evidence that WENANCE processed the personal data of the claiming party (name, surname, address, date of birth, ID number) without any of the lawful bases for processing established in Article 6.1. of the GDPR being present. Indeed, as will be developed further, the party being claimed has not provided documentation or information that allows for the verification that the credit was effectively contracted by the claiming party.

Recital 40 of the GDPR states on this matter:

“For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or under the law of the Union or of the Member States to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract.”

There is in the administrative file a consumer credit contract, corresponding, in which the following are listed as “customer data”:

“1. Customer Data

Name and surname: A.A.A.

Date of birth: XXXXXXX
Address: ***ADDRESS.1
Mobile phone: ***PHONE.1
Email: ***EMAIL.1
NIF/NIE: ***NIF.1

The claimant has denied having given consent to such contracts and having provided their personal data to WENANCE. They have filed a complaint with the Security Forces and have exercised their right to erasure against the party being claimed.

As will be detailed later, WENANCE did not carry out the necessary actions to ensure that the person contracting the credit was indeed the claiming party. Furthermore, it also did not adequately ensure that the amount of the credit was received by the person listed as the borrower.

It should be noted that, under the principle of proactive responsibility (Article 5.2 of the GDPR), which obliges the data controller to comply with the principles governing it, particularly the principle of lawfulness, and to be able to demonstrate compliance, the burden of proof lies with the controller to show that the processing of the personal data of the claimant was covered by one of the lawful circumstances provided for in Article 6.1 of the GDPR.

In the case at hand, the element of culpability, necessary for the imposition of sanctions, arises from the lack of diligence demonstrated by the respondent in complying with Article 6.1 of the GDPR.

As seen in the background of the complaint and subsequent allegations during the preliminary investigation phase, the arguments put forth by the respondent are basically as follows:

- Celebration of the loan contract and confirmation thereof through a certified electronic signature system.

WENANCE provides a consumer credit contract. It apparently contains the claimant's data. According to the data appearing in the certificate issued by "the telecommunications operator LLEIDANETWORKS Serveis Telemàtics S.A. as a trust service provider, the following steps were followed for the electronic contract signing:

(…).

There is an appearance of a validly concluded contract. However, as stated in the preliminary investigation report, analyzing the evidence provided along with the previous data, it is perceived that:

- The data where the email with the documentation and the SMS with the contract signature code were sent are: ***EMAIL.1 and ***PHONE.1.
- This phone number matches the number reported in the complaint filed with the police by the claimant, the phone with which they allegedly contacted to send the photos and request the credit.
- However, this contact information does not match the information that the claimant provided to BANCO SANTANDER (remember that they were also a client of that banking entity). Nor does it match the phone number of the claimant included in the complaint.

In any case, the conclusion of the contract electronically only presupposes that the alleged impersonator would have obtained and provided such contact data (email and phone for the confirmation of the contract), and it is necessary that, either at the time of the request for the contract or at the time of the transfer of the granted amount, the respondent ensured that the credit applicant matched the holder of the destination bank account.

- Assurance of the ownership of the destination account.

According to the allegations of the respondent, they had a dual mechanism to ensure that the amount of the requested credit was received in a bank account owned by the actual applicant. These mechanisms were as follows:

- Making a prior deposit, so that the ownership of the account could be verified.
- Requirement that the bank account into which the amount is deposited had a minimum age of three months.

Both are indeed basic precautions. Through the first, the ownership of the account is verified, preventing the transfer of the requested amount to someone who is not the true owner. And through the second, situations in which the ownership of the bank account has been impersonated are avoided, so that until three months have passed since the account was opened, credit cannot be received in it. This last aspect is especially important, as detailed in the factual narrative, the credit was requested on the same day that the claimant had sent their data to a third party, presumably with fraudulent intentions in the actions of the latter.
Well, both precautions were negligently ignored by the claimant.
Regarding the sending of a prior deposit to determine the ownership of the current account (through their payment service provider), WENANCE has stated, in its response to the inspection, that “After successive verifications by WENANCE, it has been confirmed that, on the date of the loan contract by Ms. A.A.A., the verification service was not performed by UNNAX REGULATORY SERVICES, E.D.E, S.L. (UNNAX), but manually, as indicated in points 3 to 5.”
Thus, this verification was not carried out. And more importantly: from the investigation carried out by this Agency, there is evidence that the destination current account was not owned by the claimant but by a third party. Indeed, according to the information provided by Banco Santander to the inspection:
“1.- The holder of the bank account ***ACCOUNT.1 corresponds to the client B.B.B., DNI ***NIF.2, as the only participant/holder with a registration date of 20/08/2020 and cancellation date of 15/01/2021. It provides a screenshot of the contracts of the client B.B.B. along with their registration and cancellation dates.
2.- It provides the following details of the client B.B.B.

- Email: ***EMAIL.2
- Phone: ***TELÉFONO.1
- Address: ***DIRECCIÓN.2
- Client since XXXXXXXX

The absence of controls, therefore, allowed the amount of the credit to be transferred to a person different from the one who claimed to contract it.

In this regard, it is almost unnecessary to refute the insufficiency of the transfer certificate issued at the request of WENANCE by BANCO SANTANDER. Indeed, the only thing it would certify is that the transfer request was made in favor of the claimant, and destined for current account number ***CUENTA.1. That is to say, as the inspector's report rightly points out:
“The payment services regulations do not establish the obligation for entities to verify that the name of the beneficiary corresponds with that of the holder of the destination account number for the transfer or other additional data, beyond the coincidence of the beneficiary's IBAN with that indicated in the payment order. Therefore, the certificate provided by WELP does not allow for the verification of the ownership of the bank account.”

Regarding the second mechanism, that is, the necessary antiquity of 3 months in the destination bank account of the loan amount, the relevant dates are as follows:
- Credit contract: 21/08/2020 (confirmed by the defendant party itself)
- Deposit of the loan amount (€200) in the bank account: 21/08/2020 (confirmed by the transfer certificate issued by Banco Santander)
- Date of opening of the destination account no. ***CUENTA.1: 20/08/2020 (confirmed by Banco Santander certificate)

Thus, it is established that the bank account was opened just one day before the credit contract and the transfer of the contracted amount to it. The measure that the defendant party claims to have implemented was not fulfilled.

It is important to highlight the necessary compliance with security measures such as those detailed (but not fulfilled) by the claimant. Indeed, by verifying the ownership of the current account, the transfer of the amount to a person different from the one who apparently requested the credit could have been avoided. And by verifying the antiquity of the account, this situation could also have been avoided even if the impersonator had (through previously obtained documentation) been able to open a current account in the name of the claimant, as it would have been necessary to wait for the three-month period.

With the lack of measures for which there is evidence that occurred in the operations of the defendant party, the result was not only the processing of data without any legitimacy by the data controller, but also that the default by the impersonator has led to the imposition of liability on the claimant party, in whose name the improperly contracted credit appears. This aside from the possible inclusion in data processing regarding financial solvency.

For all these reasons, it is considered that WENANCE processed the personal data of the claimant without legitimacy, as a consumer credit was contracted in their name without them having responded, requested the contract, or any other basis for legitimacy under Article 6.1 of the GDPR.

V

Classification and qualification of the infringement

In accordance with the evidence contained in the file, it is considered proven that the processing of the personal data of the claimant carried out by WENANCE, which registered a consumer credit contract in their name, was not covered by any of the legal bases established in Article 6.1 of the GDPR.

Therefore, the known facts constitute an infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR, which states:

“5. Infringements of the following provisions shall be subject to administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

In order to determine the limitation period for the infringements, the provisions of the LOPDGDD will apply, which classifies the infringement attributed to the defendant as very serious and sets a limitation period of three years for it. Article 72.1.a) of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

[...]

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

VI

Proposal for sanction

The corrective powers attributed to this Agency as the supervisory authority are related in Article 58.2 of the GDPR, paragraphs a) to j).

The provision mentions among them the power to impose an administrative fine in accordance with Article 83 of the GDPR (Article 58.2.i). Also, the power to order the

responsible for processing that the processing operations comply with the provisions of the GDPR, when applicable, in a specific manner and within a specified timeframe (Article 58.2.d).

In this case, WENANCE is imposed an administrative fine for the infringement of Article 6.1 of the

GDPR in accordance with Article 58.2.i) of the GDPR.
Article 83 of the GDPR, "General conditions for the imposition of administrative fines," states in its paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 complies in each individual case with the principles of effectiveness, proportionality, and deterrence.
The principle of proportionality requires a correlation between the infringement and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. Article 83.2 of the GDPR determines the technique to be followed to achieve that adequacy between the sanction and the infringement committed and provides a list of criteria or factors that must be taken into account to graduate the sanction.
In relation to the established facts, the concurrence of the following factors that reflect a greater unlawfulness of the conduct and/or the culpability of the infringing entity is appreciated:
-
Circumstance of Article 83.2.a) GDPR: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damages suffered;
It should be noted the special severity of the infringing conduct. Indeed, the negligence present in this case has had a significant impact on the legal sphere and the life of the complainant, as they have been forced to take actions such as the necessary filing of two complaints with the security forces; the exercise of the right to erasure against the respondent, and endure recovery actions for a debt of which they were not the true holder. All of this was prompted by the unauthorized processing carried out by the respondent party.
-
Circumstance of Article 83.2.k) GDPR: In relation to Article 76.2.b) LOPDGDD: The evident link between the business activity of the respondent and the processing of personal data.
WENANCE has as its corporate purpose, among others, the provision of financial services to the public. The execution of contracts it enters into with consumers in the development of that activity obliges it to process numerous personal data of its clients or even of third parties, from identifying data - such as name, surname, and NIF - to banking data for the direct debit of collections or payments and postal address. This characteristic of its activity obliges it to exercise utmost diligence in complying with the obligations imposed by personal data protection regulations.
No mitigating circumstances are appreciated.
In accordance with the criteria of Articles 83.1 and 83.2 of the GDPR, the infringement of Article 6.1 of the GDPR attributed to WENANCE is sanctioned with the imposition of an administrative fine in the amount of €70,000 (SEVENTY THOUSAND euros).
VII
Exercise of the right to erasure
Along with the complaint, a burofax addressed to WENANCE, dated August 12, 2022, was attached, by which the complainant communicates that they do not recognize the debt, nor have they contracted any credit with the respondent; they also request that the respondent cease processing their data henceforth.
WENANCE acknowledges having received it, indicating that the erasure could not be accepted as the execution of the contract was still in effect, in its opinion.
As stated in the preliminary investigation report, when requested for a copy of the contacts maintained with the complainant regarding the reported facts, WELP does not indicate any response to the burofax submitted by the complainant dated August 12, 2022.
In this regard, Article 17 of the GDPR establishes the following:
“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:
a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or

Article 9(2)(a), and there are no other legal grounds for the processing;
c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
d) the personal data have been unlawfully processed;
e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;

f) personal data has been obtained in relation to the offer of information society services mentioned in Article 8, paragraph 1."
In relation to the exercise of this right, paragraphs 2 and 3 of Article 12 of the GDPR establish the following:
"2. The data controller shall facilitate the exercise of the rights of the data subject under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.
3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided in another way."
According to the documentation in the file, it has been established that the respondent has violated Article 12 of the Regulation since, regardless of the substantive reasons alleged by it regarding the appropriateness of addressing the right to erasure, it should have responded to the claimant within one month regarding the request to exercise the right to erasure.

VIII

Right to Erasure. Qualification of the Violation

In accordance with the evidence available in this file, it is confirmed that the claimant did not respond to the exercise of the right to erasure as established in Article 12 of the GDPR.

Therefore, the known facts could constitute a violation of Article 12 of the GDPR, classified under Article 83.5.a) of the GDPR, which states:
"5. Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:
b) the rights of data subjects under Articles 12 to 22;
In order to determine the limitation period for the violations, the provisions of the LOPDGDD shall apply, which classifies the violation attributed to the respondent as very serious and sets a limitation period of three years. Article 72.1.d of the LOPDGDD states:
"1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following violations shall be considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein, and in particular the following:
[...]
k) The obstruction or hindrance or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.

IX

Proposal for Sanction

The corrective powers attributed to this Agency as the supervisory authority are listed in Article 58.2 of the GDPR, paragraphs a) to j).
The provision mentions among them the power to impose an administrative fine in accordance with Article 83 of the GDPR (Article 58.2.i). Also, the power to order the data controller to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe (Article 58.2.d).
In this case, WENANCE is imposed an administrative fine for the violation of Article 12 of the GDPR in accordance with Article 58.2.i) of the GDPR.
Article 83 of the GDPR, "General Conditions for Imposing Administrative Fines," states in paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the violations of this Regulation indicated in paragraphs 4, 5, and 6, complies in each individual case with the principles of effectiveness, proportionality, and deterrence.
The principle of proportionality requires a correlation between the violation and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. Article 83.2 of the GDPR determines the technique to be followed to achieve that adequacy between the sanction and the violation committed and provides a list of criteria or factors that must be taken into account to graduate the sanction.
In accordance with the criteria of Articles 83.1 and 83.2 of the GDPR, the violation of Article 12 of the GDPR attributed to WENANCE is sanctioned with the imposition of an administrative fine in the amount of €2,000 (two thousand euros).

X

Adoption of Measures

Having established the violations, it is agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to the

each control authority may "order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...".
It is considered that the respondent should be ordered to respond to the request for the right to erasure exercised by the complainant, within one month from the administrative finality of this resolution.
It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.
Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
RESOLVES:
FIRST: TO IMPOSE on WENANCE LENDING DE ESPAÑA, S.A., with NIF A67194746, for an infringement of Article 6.1 of the GDPR and an infringement of Article 12 of the GDPR, both classified under Article 83.5 of the GDPR,
- a fine of SEVENTY THOUSAND EUROS (70,000€) for the infringement of Article 6.1 of the GDPR
- a fine of TWO THOUSAND EUROS (2,000€) for the infringement of Article 12 of the GDPR

SECOND: TO ORDER WENANCE LENDING DE ESPAÑA, S.A., with NIF A67194746, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH, prove that it has responded to the request for the right to erasure exercised by the complainant.
THIRD: TO NOTIFY this resolution to WENANCE LENDING DE ESPAÑA, S.A., with NIF A67194746
FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ESXX XXXX XXXX XXXX XXXX XXXX (BIC/SWIFT Code: XXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at C/ Jorge Juan, 6

at the banking entity CAIXABANK, S.A. In the event of non-compliance, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [https://sedeagpd.gob.es/sede-electronica-web/], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-250923

Mar España Martí
Director of the Spanish Agency for Data Protection